

THE CODE OF HAMMURABI.

TRANSLATION.

§ 1.

¶ If a man bring an accusation against a man, and charge him with a (capital) crime, but cannot prove it, he, the accuser, shall be put to death.

§ 2.

¶ If a man charge a man with sorcery, and cannot prove it, he who is charged with sorcery shall go to the river, into the river he shall throw himself and if the river overcome him, his accuser shall take to himself his house (estate). If the river show that man to be innocent and he come forth unharmed, he who charged him with sorcery shall be put to death. He who threw himself into the river shall take to himself the house of his accuser.

§ 3.

¶ If a man, in a case (pending judgment), bear false (threatening) witness, or do not establish the testimony that he has given, if that case be a case involving life, that man shall be put to death.

§ 4.

¶ If a man (in a case) bear witness for grain or money (as a bribe), he shall himself bear the penalty imposed in that case.

§ 5.

¶ If a judge pronounce a judgment, render a decision, deliver a verdict duly signed and sealed and afterward alter his judg-

ib 12 wa-ar-ka-^bnu-um-ma 13 di-in-šu i-te-ni 14
da-a-a-nam šu-a-ti 15 i-na di-in bi-di-nu 16 e-ne-
im 17 u-ka-an-nu-šu-ma 18 ru-gu-um-ma-am 19 ša
i-na di-nim ^bšu-a-ti 20 ib-ba-aš-šu-u 21 a-du XII-
šu 22 i-na-ad-di-in 23 u i-na pu-uh-^bri-im 24 i-na
^bu-kussē 25 da-a-a-nu-ti-šu 26 u-še-it-bu-u-šu-ma 27
u-ul i-ta-ar-ma 28 it-ti da-a-a-ni 29 i-na di-nim
30 u-ul uš-ta(=ša)-ab

§ 6.—VI, 31-40.

31 šum-ma a-wi-lum 32 ŠA.GA ilim 33 u ékal-
lim 34 iš-ri-iḫ 35 a-wi-lum šu-u 36 id-da-ak 37
u ša šu-ur-ga-am 38 i-na ga-ti-šu 39 im-ḥu-ru 40
id-da-ak

§ 7.—VI, 41-56.

41 šum-ma a-wi-lum 42 lu kaspam 43 lu ḥurā-
šam 44 lu wardam lu amtam 45 lu alpam lu immer-
am 46 lu imēram 47 u lu mi-im-ma ^bšum-šu 48
i-na ga-at ^bmār a-wi-lum 49 u lu warad a-wi-lim
50 ba-lum ši-bi 51 u ri-ik-sa-tim 52 iš-ta-am 53
u lu a-na ma-ša-ru-tim 54 im-ḥu-ur 55 a-wi-lum
šu-u 56 šar-ra-aḫ id-da-ak

§ 8.—VI, 57-69.

57 šum-ma a-wi-lum 58 lu alpam lu immeram
^blu imēram lu šahām 59 u lu elippam 60 iš-ri-iḫ
61 šum-ma ša i-lim 62 šum-ma ša ékallim 63 a-
du XXX-šu 64 i-na-ad-di-in 65 šum-ma ša MAŠ.
EN.KAK 66 a-du X-šu i-ri-a-ab 67 šum-ma šar-
ra-^bga-nu-um 68 ša na-da-nim ^bla i-šu 69 id-da-ak

§ 9.—VI, 70-VII, 47.

70 šum-ma a-wi-lum VII, 1 ša mi-im-mu-šu ^bhal-
ḫu 2 mi-im-ma-šu 3 ḥal-ga-am 4 i-na ga-ti ^ba-
wi-lim 5 iš-ša-ba-at 6 a-wi-lum ša ḥu-bul-ḫum 7
i-na ga-ti-šu 8 ša-ab-tu 9 na-di-na-nu-um-mi ^bid-
di-nam 10 ma-ḥar ši-bi-mi 11 a-ša-am 12 iḫ-ta-
bi 13 u be-el ḥu-ul-^bḫi-im 14 ši-bi mu-di 15 ḥu-

ment, they shall call that judge to account for the alteration of the judgment which he had pronounced, and he shall pay twelve-fold the penalty which was in said judgment; and, in the assembly, they shall expel him from his seat of judgment, and he shall not return, and with the judges in a case he shall not take his seat.

§ 6.

¶ If a man steal the property of a god (temple) or palace, that man shall be put to death; and he who receives from his hand the stolen (property) shall also be put to death.

§ 7.

¶ If a man purchase silver or gold, manservant or maid servant, ox, sheep or ass, or anything else from a man's son, or from a man's servant without witnesses or contracts, or if he receive (the same) in trust, that man shall be put to death as a thief.

§ 8.

¶ If a man steal ox or sheep, ass or pig, or boat—if it be from a god (temple) or a palace, he shall restore thirtyfold; if it be from a freeman, he shall render tenfold. If the thief have nothing wherewith to pay he shall be put to death.

§ 9.

¶ If a man, who has lost anything, find that which was lost in the possession of (another) man; and the man in whose possession the lost property is found say: "It was sold to me, I purchased it in the presence of witnesses;" and the owner of the lost property say: "I will bring witnesses to identify my lost property": if the purchaser produce the seller who has sold it to him

ul-ki-i-a-mi 16 lu ub-lam 17 iḫ-ta-bi 18 sa-a-a-
ma-nu-um 19 na-di-in 20 id-di-nu-šum 21 u ši-bi
22 ša i-na mah-ri-^bšu-nu 23 i-ša-mu it-ba-lam 24
u be-el hu-ul-^bki-im 25 ši-bi mu-di ^bhu-ul-ki-šu
26 it-ba-lam 27 da-a-a-nu 28 a-wa-a-ti-šu-nu 29
i-im-ma-ru-ma 30 ši-bu ša mah-ri-^bšu-nu 31 si-
mu-um 32 iš-ša-mu 33 u ši-bu mu-di 34 hu-ul-
ki-im 35 mu-du-zu-nu 36 ma-ḥar i-lim 37 i-ga-
ab-bu-ma 38 na-di-na-nu-um 39 šar-ra-aḫ id-da-ak
40 be-el hu-ul-ki-im 41 hu-lu-uḫ-šu 42 i-li-ki 43
ša-a-a-ma-nu-um 44 i-na bi-it 45 na-di-na-nim 46
kaspam iṣ-ḫu-lu 47 i-li-ki

§ 10.—VII, 48-61.

48 šum-ma ša-a-a-^bma-nu-um 49 na-di-in 50 id-
di-nu-šum 51 u ši-bi ša i-na ^bmah-ri-šu-nu 52 i-ša-
mu 53 la it-ba-lam 54 be-el hu-ul-^bki-im-ma 55
ši-bi mu-di 56 hu-ul-ki-šu ^{bit}it-ba-lam 57 ša-a-a-
ma-nu-um 58 šar-ra-aḫ id-da-ak 59 be-el hu-ul-ki-
im 60 hu-lu-uḫ-šu 61 i-li-ki

§ 11.—VII, 62-VIII, 3.

62 šum-ma be-el ^bhu-ul-ki-im 63 ši-bi mu-di 64
hu-ul-ki-šu 65 la it-ba-lam VIII, 1 ša-ar 2 tu-
uṣ-ša-am-ma ^bid-ki 3 id-da-ak

§ 12.—VIII, 4-13.

4 šum-ma na-di-^bna-nu-um 5 a-na ši-im-tim 6
it-ta-la-ak 7 ša-a-a-ma-nu-um 8 i-na bi-it 9 na-
di-na-nim 10 ru-gu-um-me-e 11 di-nim šu-a-ti 12
a-du V-šu 13 i-li-ki

§ 13.—VIII, 14-24.

14 šum-ma a-wi-lum ^bšu-u 15 ši-bu-šu ^bla kir-
bu 16 da-a-a-nu a-da-nam 17 a-na arḫim VI ^{kam} 18
i-ša-ak-ka-^bnu-šum-ma 19 šum-ma i-na arḫim VI ^{kam}
20 ši-bi-šu ^bla ir-di-a-am 21 a-wi-lum šu-u 22 ša-
ar 23 a-ra-an di-nim ^bšu-a-ti 24 it-ta-na-aš-ši